

26STCV07555 26STCV07555

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-19

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Case Number: 26STCV07555 Hearing Date: August 19, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

ARTHUR CHARCHIAN

vs.

MAMMOTH MOUNTAIN SKI AREA, LLC, et al.

Case

No.: 26STCV07555

Hearing Date: August 19, 2026

Defendants'

motion to transfer venue to Mono County is GRANTED.

On

3/9/2026, Plaintiff Arthur Charchian (Plaintiff) filed suit against Alterra

Mountain Company and Mammoth Mountain Ski Area (collectively, Defendants),

alleging: (1) negligence/negligence per se; and (2) gross negligence.

On

7/21/2026, Defendants moved to transfer venue to Mono County.

Discussion

Defendants

argue that Mono County is the only proper venue for this action given that this is where Defendant Mammoth resides, operates, and has its principal place of business. Moreover, every material event giving rise to this litigation occurred in Mono County including the incident itself.

California's

general rule concerning venue is set forth in Code of Civil Procedure section 395, which creates a preference for trial in the county of a defendant's residence. Here, that county is Mono County, where Mammoth Mountain has its principal place of business and where the incident occurred. Venue is only proper in a county other than the Defendant's residence if there is an express statutory authority allowing venue elsewhere. (*Brown v. Superior Court* (1984) 37 Cal.3d 477, at 483.) Here, there is no statutory exception. To the contrary, pursuant to CCP §395(a) venue is proper in the county where the "defendants or some of them reside at the commencement of the action."

Second, venue

is mandatory in Mono County where Plaintiff expressly agreed that any litigation arising from the activity would be subject to exclusive jurisdiction and venue in Mono County, California. As part of the snowmobile tour, Plaintiff executed a written release and assumption of risk agreement (the Release) containing a valid, enforceable forum selection clause requiring that any claims relating to the excursion be brought exclusively in Mono County. (Andrews Decl., ¶¶9-15; Corso Decl. ¶¶11-19).

Third,

because transfer of the action is mandatory, monetary recovery of attorney fees and costs is warranted pursuant to CCP section 396b(a). At the hearing, Defendant is to set forth argument as to the fees and costs incurred to litigate this motion.

Based on the

foregoing, Defendants' motion to transfer venue to Mono County is granted.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.